

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

BAHAWALPUR BENCH, BAHAWALPUR

JUDICIAL DEPARTMENT

Crl. Misc. No.972-B/2020/BWP

Muhammad Ijaz **Vs.** The State and another

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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08.04.2020 Sardar Muhammad Khan Nutkani, Advocate for the
petitioner.

According to the certificate appended with the petition, this is the second bail petition filed by the petitioner under section 497 Cr.P.C., seeking post-arrest bail in case FIR No.109 of 2019 dated 30.04.2019 registered at police station Ghamandpur, District Bahawalnagar in respect of offences under sections 302, 337-U(i), 337-A(i), 337-A(ii), 337-A(iii), 337-A(vi), 337-F(i), 337-F(iv), 337-F(v), 337-L(2), 148 and 149 PPC. It is not questioned that the first petition filed by the petitioner under section 497 Cr.P.C. bearing Crl. Misc. No.2161-B/2019/BWP seeking the same relief was dismissed by this Court vide order dated 16.10.2019 after the learned counsel for the petitioner had argued the case at “*full length*” but had remained unable to persuade this Court to admit the petitioner to post-arrest bail and the said petition was dismissed after discussion of all the grounds pleaded. Learned counsel for the petitioner has argued that subsequent to the earlier order of this Court, the offence under section 337-A(vi) PPC has been deleted and offence under section 337-A(iii) PPC has been added. Learned counsel for the petitioner submits that this is the fresh ground for

seeking the relief craved for through this petition. As is obvious the substitution of the offence under section 337-A(iii) PPC in place of the offence under section 337-A(vi) PPC hardly creates any fresh ground. Learned counsel for the petitioner has also argued that the petitioner deserves to be released on post-arrest bail as a severe/acute respiratory syndrome identified as Corona Virus disease 2019 (Covid-19) has taken a shape of pandemic and the petitioner risked being effected if not released. The august Supreme Court of Pakistan in the case of **“Raja Muhammad Nadeem v. The State (Federation of Pakistan thr. Secretary Ministry of Interior) and another”** vide its order dated 07.04.2020 has already observed as under:-

“Argument that our overcrowded prisons could be a breeding ground for the deadly virus is beside the mark. Barring few countries with low crime rates, most prisons in the world are overcrowded. An overcrowded prison, though an inconvenient abode, nonetheless, without a contaminated inmate is a safe place; instead of releasing them all, it is more expedient to screen the each after plugging the new entrants.”

Moreover, learned counsel for the petitioner himself has admitted that the petitioner is less than 55 years of age (aged about 35 years). The august Supreme Court of Pakistan in the case of **“Raja Muhammad Nadeem v. The State (Federation of Pakistan thr. Secretary Ministry of Interior) and another”** vide its order dated 07.04.2020 has already observed as under:-

“Prisoners released in pursuance to the above mentioned orders are directed to be taken into custody except those falling within the categories

suggested by the learned Attorney General for Pakistan with the concurrence of Advocate Generals of the Provinces .These categories we approve for conforming the considerations laid down by the law discussed above.”

The learned Attorney General for Pakistan, after highlighting various steps taken by the Government to combat the menace, had suggested following recommendations for release of the prisoners in the above mentioned case:-

“U.T.P.’s Accused persons charged for offences under non-prohibitory clauses or under vagrancy law or offences carrying less than three years sentence may be considered for bail subject to the following:-

(a) the benefit shall not extend in cases involving abuse/violent acts against children and women.

(b) benefit shall first be extended to persons otherwise suffering from ailments or physical or mental disability.

(c) benefit shall be extended to UTPs who are 55 years of age or older and then other male UTPs provided there is no history of past convictions.

(d) benefit shall be extended to all women/juvenile UTPs.”

Hence, in view of the above observations of the august Supreme Court of Pakistan, the present pandemic of Corona Virus disease 2019 (Covid-19) also does not create any ground of release of petitioner on bail. In view of the matter, as this Court has already passed an inclusive order dated 16.10.2019 after considering all the facts and circumstances of the case, this second petition seeking

the same relief does not disclose any fresh ground for grant of post-arrest bail to the petitioner.

2. There is no cavil to the proposition that withdrawal of a bail petition coordinates with collapse of all the grounds available then, making it obligatory, for the petitioner to search for a fresh ground, not available to him earlier and having arisen subsequent to the earlier order of withdrawal, so as to move a second or subsequent bail application(s). The perusal of this petition reveals no such fresh ground which was not available to the petitioner at the time of earlier order of withdrawal. Reference can be made to the case of “THE STATE THROUGH ADVOCATE-GENERAL, N.-W. F. P. v. Zubair and 4 others” (PLD 1986 SC 173) wherein the august Supreme Court of Pakistan has held that:--

" It might be useful to mention here that the second or the subsequent bail application to the same Court shall lie only on a fresh ground namely, a ground which did not exist at the time when the first application was made. If a ground was available to the accused at the time when the first bail application was filed and was not taken or was not pressed, it cannot be considered as a fresh and made the basis of any subsequent bail application. We may also point out, with respect to the learned Judge, who dealt with the second bail application that the mere fact that the learned Judge who had rejected the first bail application of the respondents with the observation that as far as the remaining petitioners (the respondents herein) are concerned no case had been made out for their release on bail, does not mean that the application had not been disposed of on merits. It must be assumed that he had considered all the pleas or grounds raised by the applicant's counsel before him and that the same and not found favour with him. It may be pointed out, with great

respect that the notion that each contention raised before the Court in a bail application must be dealt with separately or repelled by recording elaborate reasoning is totally misconceived. We are of the view that in the present, case the learned Judge who dealt with the second bail application had in fact embarked on a review of the order of the learned Judge in fact, embarked had earlier dismissed the first bail application."

Reliance in this respect is also placed on the cases of "Nazir Ahmed and another v. The State and others"(PLD 2014 SC 241) and "Muhammad Aslam v. The State and others" (PLD 2015 SC 41).

3. In view of the above discussion, this petition being meritless, is **dismissed**.

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for reporting:

Judge